NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
SPECIAL BENCH (COURT-II)

CAA No. 19/ND/2020
Connected with
CA (CAA) 60/ND/2019

IN THE MATTER OF :

Halwasiya Estates Limited
Sanskriti Bhawan, A-10
Qutub Institutional Area
Aruna Asaf Ali Marg
New Delhi-110067 **...Transferor Company**

And

Welldone Technology Parks Development Private Limited
Sanskrit Bhawan A-10
Qutub Institutional Area
Aruna Asaf Ali Marg
New Delhi-110067 **...Transferee Company**

Section: 230-232 of the Companies Act, 2013

Judgement Delivered on: 03.02.2020

CORAM:

DR. DEEPTI MUKESH, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:

For the Petitioner : Ms. Saubhagya Agarwal and
Mr. Sumit Babbar, Advocates

JUDGEMENT

PER SHRI L. N. GUPTA, MEMBER (T)

This Company Petition filed by the Petitioners is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication to be effected and issuance of Notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") contemplated between the Petitioner Companies.

2. From the Records, it is seen that the First Motion seeking direction for dispensing the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in CO APPL. (CAA) 60/ND/2019 and based on such joint application moved under Sections 230-232 of the Companies Act, 2013, directions were issued by this Tribunal to dispense the meetings of the Equity Shareholders, and unsecured creditors vide Order dated 28.05.2019. There were no secured Creditors of the Petitioner Company, so the requirement of dispensing of meeting did not arise.

3. It is submitted by the Petitioner Companies that they have obtained consent letters of all the Shareholders and Unsecured Creditors of both the Companies.

4. This Petition by way of Second Motion has come up before us for fixing a date of hearing as well as for other consequential direction in terms of provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 brought into effect and it is now hereby Ordered as follows :

(i) The Petition stands Admitted.

(ii) The date of hearing of the Joint Petition filed by the Petitioners for the approval of the Scheme is fixed for 15.04.2020.

(iii) Notice of the hearing shall be advertised in the newspapers namely, "Financial Express" in English and Hindi "Jansatta" (Delhi edition) not less than 10 days before the aforesaid dated fixed for hearing.

5. In addition to the above Public Notice, both the Petitioner Companies shall individually serve the Notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs, (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs, (c) the Income Tax Department and (d) to such other Sectoral Regulatory Authorities, which may govern the working of the respective Companies

involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

6. Both the Petitioner Companies shall at least 7 days before the date of hearing of the Petition file an Affidavit of Service in relation to paper publication effected as well as service of Notices on the Authorities specified above including the Sectoral Regulator.

7. Objections, if any, to the Scheme contemplated by the authorities to whom Notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Dr. Deepti Mukesh)
Member (J)